

To

The Estate Officer / Executive Officer  
Cantonment Nasirabad.

Sub: - Notice under sec.5A (2) PP Act 1971

Ref: - Your No.87 dated 3.12.99

Sir,

1 This reminder is again submitted in continuation to earlier reminders about my house nos. 533 & 532, in above reference requesting your honour to drop action under PP act considering the following facts.

| House No. | GLR Survey No. | Plot Area | Land Classification | Old Grant                |
|-----------|----------------|-----------|---------------------|--------------------------|
| 533       | 280 / 752      | 1120 sft  | B (3)               | House Tax Paid upto 3/06 |
| 532       | 280 / 751      | 405 sft   | B (3)               | House Tax Paid upto 3/06 |

Land area of both the above houses cumulatively is **1525 sft of old grant**, situated in Ramdayal mohalla Nasirabad, bound at site as below and shown in attached site plan.

On the North by: - Gully

On the South by: - Road

On the East by: - H.N. 534

On the West by: - RASTA

2. Encroachment on govt. land B (4) measuring 701 sft as reported by Overseer under PP act.

Actually land of both the houses have been objected (i) of H.N.533 measuring 296 sft chabutra, a part of its all area 1120sft and (ii) of H.N.532 (its adjoining building site) measuring its all area 405 sft compounded to 701sft has been shown as encroachment on govt. land under PP act.

Land of both houses since origin is already classed B(3) old grant in GLR including objected land 701sft. Cantt is charging their house tax by legal notices. So action under PP act is not justified. Kutch house No.532 deteriorated by rains over the years and lastly remains is its building site.

Overseer reported sy.no. 280/4485(pt) of encroached land while sy. nos. of H.N.532 & 533 as per GLR is 280/751&752 with their land areas duly specified 405 sft and 1120 sft **B(3) old grant**. Objected land 701sft is duly vested in their specified areas as part and parcel. No govt. land even an inch other than **public rastas or road** exists around houses so encroachment is totally out of question. **House tax** of both houses had been paid throughout to Cantt. on demand notices and nothing is due up to 3/2006.

On one hand house tax of old grant H.N.532 & 533 has been duly charged throughout by Cantt. and on other hand its overscr treated 701sft area of the same houses unscrupulously as encroachment on govt. land. It is harassment and strange reversal of justice entailing tax refund if illegally realized.

3 **B(4) govt. land is untaxed and B(3) land houses are legally taxed. 701 sft objected land of H.N. 532 & 533 is B(3) old grant. It has never been B(4) govt. land. Cantt. despite of having realized house tax by legal notices duly assessed time to time over eighty years also confirm undisputed title.**

4 I request your honour to consider to drop the case under PP act, regularizing misunderstanding for good. Sir I'm senior citizen humbly pray to beg a favour for early disposal due to sickly health at 74 which sometimes may not permit physical presence on hearing dates.

Thanking you highly.

Yours sincerely

(R.C.Sharma)

S/o Late Narain Gordhan

1093'A' Balupura Road, Adarsh nagar, Ajmer

Encls. Site Plan